IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-III

Item No.324
CA(CAA)/125/ND/2021

IN THE MATTER OF:
M/s. Sungrow Agencies Pvt Ltd. **.... APPLICANT/PETITIONER**

SECTION
U/s 230/232

Order delivered on 21.12.2021

CORAM:
SHRI BACHU VENKAT BALARAM DAS
MEMBER (JUDICIAL)

SHRI NARENDER KUMAR BHOLA
MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Gursat Singh, Advocate
For the OL :Hemlata Rawat

ORDER

Counsel for the Petitioner Companies is present. In the matter there are three Transferor Companies and one Transferee Company. All the Companies are having registered office within the jurisdiction of this Tribunal. Counsel has taken us through the present petition which is first motion petition and through which necessary exemption from holding the shareholders meeting, Secured Creditors meeting, Unsecured Creditors meeting of all the Companies has been sought. We have gone through the no objection given by the shareholders, secured creditors, unsecured creditors of all the Companies. It is seen that all such shareholders and creditors have given proper no objection by way of individual affidavits and the same are placed on record.

In view of the above, we hereby grant exemption from holding of the shareholders meeting, secured meeting and unsecured meeting in terms of Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and Section 230/232 of the Companies Act, 2013.

In addition to above, the Counsel for the Petitioner Companies is directed to issue public notice in leading newspaper i.e., Business Standard (English and

NB

Hindi) & Jansatta (Hindi) calling for objections from public of the aforesaid scheme of amalgamation within 15 days of the date of publication.

Counsel for the Petitioner Companies is also directed to serve a copy of the present petition to all the statutory authorities i.e, Central Government (Regional Director, IT Department & Official Liquidator to enable them to submit their report in the matter. Counsel for the Petitioner Companies shall file compliance report of the above order along with second motion petition within 45 days from today.

Accordingly, the present petition stands disposed of.

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

(NARENDER KUMAR BHOLA)
MEMBER (TECHNICAL)